
Master Service Agreement

between

GlobalTrade Logistics Inc.

and

SwiftShip Express, Inc.

Agreement No. SS-MSA-2024-117

Effective Date: January 15, 2024

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1. Parties

This Master Service Agreement (the "Agreement") is entered into as of January 15, 2024 (the "Effective Date") by and between **GlobalTrade Logistics Inc.**, a Delaware corporation with its principal place of business at 400 Harborview Plaza, Suite 1200, Wilmington, Delaware, USA ("GlobalTrade", the "Shipper"), and **SwiftShip Express, Inc.**, a Delaware corporation, with its principal place of business at 2200 Aerodrome Way, Memphis, Tennessee, USA ("SwiftShip", the "Carrier"). GlobalTrade and SwiftShip are each a "Party" and together the "Parties". This Agreement supersedes all prior agreements, proposals, term sheets, and letters of intent between the Parties relating to its subject matter.

2. Definitions

For the purposes of this Agreement, the following capitalized terms have the meanings set out below. Other capitalized terms are defined where they first appear.

1. **"Business Day"** means any day other than a Saturday, Sunday, or public holiday in the jurisdiction of the delivery destination.
2. **"Scheduled Delivery Date"** means for each shipment, the delivery date promised at tender: one (1) day after tender for Same Day shipments and two (2) days after tender for First Class shipments.
3. **"Late Delivery"** means any shipment delivered after its Scheduled Delivery Date; because Same Day and First Class are time-definite products, **no grace period applies**.
4. **"On-Time Delivery Rate"** means, for any calendar month, the number of shipments delivered on or before their Scheduled Delivery Date divided by the total number of shipments tendered in that period, expressed as a percentage and rounded to one decimal place.
5. **"Shipment Value"** means the invoiced sales value of the goods contained in a shipment, exclusive of freight charges, duties, and taxes.
6. **"Service Levels"** means the performance commitments set out in Section 5 of this Agreement.
7. **"Confidential Information"** means all non-public business, technical, pricing, volume, and operational information disclosed by one Party to the other, whether marked confidential or not, that a reasonable person would understand to be confidential.
8. **"Late Business Day"** means each Business Day, or part thereof, elapsed after the Scheduled Delivery Date until actual delivery.
9. **"Tender"** means GlobalTrade's electronic handover of a shipment booking to SwiftShip via API or portal.

3. Scope of Services

SwiftShip shall provide time-definite express transportation services for GlobalTrade's **Same Day** and **First Class** shipping lanes worldwide, including pickup within two (2) hours of tender for Same Day shipments, airport-to-airport and door-to-door linehaul, coordination of customs brokerage, and real-time milestone tracking (pickup, departure, arrival, out-for-delivery, proof of delivery) via SwiftShip's API. Same Day shipments carry a Scheduled Delivery Date of one (1) day from tender; First Class shipments carry a Scheduled Delivery Date of two (2) days from tender. SwiftShip is GlobalTrade's primary carrier for premium express lanes in all markets. Tender volumes are forecast quarterly by GlobalTrade in good faith but do not constitute guaranteed minimums; SwiftShip shall maintain capacity to absorb peak-season volumes up to 140% of the trailing-quarter average.

4. Term

This Agreement commences on the Effective Date and continues for an initial term of three (3) years (the "Initial Term"). Upon expiry of the Initial Term, this Agreement automatically renews for successive one (1)-year renewal periods (each a "Renewal Term") unless either Party gives written notice of non-renewal at least ninety (90) days before the end of the then-current term. Rates and Service Levels remain fixed during the Initial Term; thereafter, either Party may request one rate review per Renewal Term, provided that any adjustment exceeding 4% per annum requires mutual written agreement supported by a documented cost index. Sections 2, 6 (with respect to accrued penalties and credits), 8, 11, and the confidentiality obligations survive expiry or termination of this Agreement for a period of three (3) years.

5. Service Levels

5.1 Service Level Framework

SwiftShip's performance is measured monthly against the commitments in this Section 5 using GlobalTrade's tender records and SwiftShip's proof-of-delivery timestamps, reconciled through the monthly scorecard process in Section 5.3. Time-definite express service is the essence of this Agreement: the Parties acknowledge that GlobalTrade sells premium delivery promises to its own customers in reliance on these Service Levels.

5.2 On-Time Delivery Commitment

SwiftShip commits to an On-Time Delivery Rate of at least **96.0%** of all shipments tendered in each calendar month, measured separately for the Same Day lane and the First Class lane as well as in aggregate. A shipment is on time only if the proof-of-delivery timestamp falls on or before 23:59 local time at destination on the Scheduled Delivery Date. Shipments excluded from measurement: shipments affected by a Force Majeure Event under Section 9, and shipments where lateness is solely attributable to a GlobalTrade documentation error confirmed through the dispute process.

5.3 Measurement & Reporting

SwiftShip shall deliver a monthly performance scorecard by the fifth (5th) Business Day of the following month, broken down by lane, market, and origin-destination pair, including every Late Delivery with its delay in Business Days and root-cause code. GlobalTrade may dispute scorecard entries within ten (10) Business Days; undisputed entries are final for penalty calculation.

6. Late Delivery Penalties

6.1 Per-Shipment Penalty

For each Late Delivery, SwiftShip shall pay GlobalTrade a penalty equal to **2% of the Shipment Value for each Late Business Day**, beginning on the first Business Day after the Scheduled Delivery Date. There is no grace period: Same Day and First Class are time-definite products and any delivery after the Scheduled Delivery Date is a Late Delivery.

6.2 Penalty Cap

The aggregate penalty for any single shipment is capped at **15% of that shipment's Shipment Value**, regardless of the total length of the delay.

6.3 Worked Example

A First Class shipment with a Shipment Value of \$10,000 is delivered three (3) Business Days after its Scheduled Delivery Date: the penalty is $3 \times 2\% = 6\%$ of \$10,000 = **\$600**. Had the same shipment been delivered nine (9) Business Days late, the uncapped penalty of 18% would be reduced to the 15% cap, i.e. **\$1,500**.

6.4 Set-Off and Exclusions

Penalties accrued in a month are itemized on the monthly scorecard and may be set off by GlobalTrade against SwiftShip's next invoice. No penalty accrues for shipments excluded from measurement under Section 5.2. Penalties under this Section 6 are in addition to, and do not limit, GlobalTrade's termination right for chronic Service Level failure under Section 10(e).

7. Invoicing & Payment

SwiftShip shall invoice GlobalTrade monthly in arrears, in US dollars, with one consolidated invoice per calendar month itemizing each shipment by tracking number, lane, Shipment Value, and applicable charges, accompanied by the corresponding scorecard. Undisputed invoices are payable **net thirty (30) days** from the invoice date. GlobalTrade must raise invoice disputes in writing within ten (10) Business Days of receipt, and the Parties shall resolve disputes within thirty (30) days; the undisputed portion remains payable when due. Late payments accrue interest at **1.5% per month** (or the maximum rate permitted by law, if lower) on the overdue undisputed amount. SwiftShip may not suspend services for non-payment unless undisputed amounts remain unpaid sixty (60) days past due and SwiftShip has given ten (10) Business Days' written warning.

8. Liability & Indemnification

SwiftShip's aggregate liability under this Agreement, whether arising in contract, tort (including negligence), breach of statutory duty, or otherwise, shall not exceed the total fees paid or payable by GlobalTrade under this Agreement in the twelve (12) months preceding the event giving rise to liability. The foregoing cap does not apply to: (a) liability arising from gross negligence, willful misconduct, or fraud; (b) SwiftShip's indemnification obligations in respect of third-party claims for bodily injury, death, or damage to tangible property; (c) breaches of confidentiality; or (d) loss of or damage to cargo, which is governed by the Montreal Convention for international air carriage or applicable national surface-transport law. Penalties under Section 6 are GlobalTrade's exclusive financial remedy for Late Delivery as such, but do not limit remedies for chronic failure under Section 10(e) or for loss of or damage to the goods themselves. Neither Party is liable to the other for indirect, consequential, special, or punitive damages, or for loss of profit, revenue, or goodwill, except to the extent such damages fall within the carve-outs above. SwiftShip shall maintain, at its own cost, commercial general liability insurance of at least \$5,000,000 per occurrence, cargo liability insurance of at least \$1,000,000 per conveyance, and statutory employer liability cover, and shall provide certificates of insurance to GlobalTrade upon request and at each renewal.

9. Force Majeure

Neither Party is liable for any failure or delay in performance caused by events beyond its reasonable control, including natural disasters, severe weather, epidemics, war, terrorism, civil unrest, acts of government, embargoes, port or airport closures, customs stoppages not attributable to documentation errors by the affected Party, national or industry-wide strikes (expressly excluding strikes limited to SwiftShip's own workforce), and widespread failures of public infrastructure, utilities, or telecommunications (each a "Force Majeure Event"). The affected Party must notify the other Party in writing within five (5) Business Days of becoming aware of a Force Majeure Event, describing the event, the performance affected, and the estimated duration, and must use commercially reasonable efforts to mitigate its impact and resume performance. Service Level measurement under Section 5 is suspended for shipments demonstrably affected by the Force Majeure Event, and no penalties or credits under Section 6 accrue with respect to such shipments. If a Force Majeure Event continues for more than thirty (30) consecutive days, either Party may terminate this Agreement upon written notice without penalty, and the Shipper shall pay only for services performed and conforming goods delivered up to the effective date of termination.

10. Termination

Either Party may terminate this Agreement: (a) for material breach by the other Party that remains uncured thirty (30) days after written notice describing the breach in reasonable detail; (b) immediately upon written notice if the other Party becomes insolvent, files or has filed against it a petition in bankruptcy that is not dismissed within sixty (60) days, or makes a general assignment for the benefit of creditors; or (c) as provided in Section 9. GlobalTrade may additionally terminate this Agreement: (d) for convenience on ninety (90) days' written notice; and (e) for chronic Service Level failure, defined as an On-Time Delivery Rate below 96.0% for two (2) consecutive calendar quarters, on thirty (30) days' written notice without any further cure period. Upon any termination or expiry, SwiftShip shall complete all shipments in transit or accepted prior to the effective date of termination in accordance with this Agreement, shall return or destroy all Confidential Information of GlobalTrade, and shall cooperate in good faith in an orderly transition to a successor provider for up to sixty (60) days at the rates then in effect. Termination does not relieve either Party of obligations accrued before the effective date of termination, including penalties and service credits accrued under Section 6.

11. Governing Law & Dispute Resolution

This Agreement is governed by and construed in accordance with the laws of the State of New York, USA, without regard to its conflict-of-laws principles. The state and federal courts located in New York County, New York have exclusive jurisdiction over any dispute arising out of or in connection with this Agreement, and each Party irrevocably submits to that jurisdiction. Before initiating any proceeding, the Parties shall escalate the dispute first to their respective account managers and, failing resolution within fifteen (15) Business Days, to a senior executive of each Party; only if the dispute remains unresolved thirty (30) days after escalation to executives may a proceeding be initiated. Nothing in this Section prevents either Party from seeking interim injunctive relief to protect its Confidential Information or intellectual property.

12. Miscellaneous

This Agreement, together with its Schedules and any executed amendments, constitutes the entire agreement between the Parties with respect to its subject matter. Amendments must be in writing and signed by authorized representatives of both Parties. Neither Party may assign this Agreement without the other Party's prior written consent, except to an affiliate or in connection with a merger, acquisition, or sale of substantially all of its assets, with written notice to the other Party. SwiftShip shall not subcontract linehaul services on any lane without GlobalTrade's prior written approval, and remains fully liable for the acts and omissions of any approved subcontractor as if they were its own. All notices must be in writing and delivered to the addresses stated in Section 1 by courier or by email with delivery confirmation. If any provision of this Agreement is held invalid or unenforceable, the remaining provisions remain in full force and effect. No waiver of any provision is effective unless made in writing; the failure of either Party to enforce any provision is not a waiver of its right to do so later.